

STATE OF INDIANA IN THE St. Joseph COURT
COUNTY OF St. Joseph CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Maria-Alejandra O'Shaughnessy-Whitfield
Petitioner

APPEARANCE BY UNREPRESENTED PERSON IN EXPUNGEMENT MATTER

1. My name is Maria-Alejandra O'Shaughnessy-Whitfield and I am the Petitioner in this case I am not represented by a lawyer.

2. My current address is:
1188 Upper Notch Crossing Road,
Apartment 14B
Crown Point, Indiana 46307-2214

Email address: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

☐ *I will accept service at the above email address.*

Phone: (219) 555-0199 ext. 4417

Fax: _____

OR, if in a related case, you have used the Attorney General confidential address, you may check the box below:

☐ Attorney General confidential address

3. This is an XP case type as defined in Administrative Rule 8(B)(3).

4. There are related cases: *(If yes, please indicate below)*

☐ Yes

☐ No

Caption and case number of related cases:

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Additional information as required by local rule:

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

Form ACR (Access to Court Records)

STATE OF INDIANA IN THE St. Joseph COURT

COUNTY OF St. Joseph CAUSE NO. _____

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**Notice of Exclusion of Confidential Information from Public Access
(FILED WITH TRIAL COURT CLERK)**

Contemporaneous with the filing of this notice, Maria-Alejandra O'Shaughnessy-Whitfield has filed confidential information under the Indiana Rules on Access to Court Records. Maria-Alejandra O'Shaughnessy-Whitfield, provides this notice that the confidential information is to remain excluded from public access in accordance with the authority listed below:

Name or description of document

Confidential Information Form listing
Petitioner's full Social Security Number

ACR grounds for exclusion

Access to Court Records Rule 5

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

Not Public Record

CONFIDENTIAL INFORMATION FORM

XP CAUSE NUMBER: _____

PETITIONER'S NAME: Maria-Alejandra O'Shaughnessy-Whitfield

PETITIONER'S FULL SOCIAL SECURITY NUMBER: _____

**ATTENTION CLERK: FOR SELF REPRESENTED LITIGANTS TREAT THIS FORM
AS IF IT IS PRINTED ON GREEN PAPER.**

IF THIS DOCUMENT IS E-FILED, FILE THIS AS A CONFIDENTIAL DOCUMENT

Not Public Record

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Verified Petition to Expunge a Serious Felony Conviction

Authority: I.C. 35-38-9-5; I.C. 35-38-9-8; I.C. 35-38-9-9; I.C. 35-38-9-7; P.L.77-2025

VERIFIED PETITION

Petitioner requests expungement of a serious felony conviction under I.C. 35-38-9-5.

Facts the petition must state:

Full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

[Participant completes: all other legal names or aliases]

[Participant completes: date of birth]

[Participant completes: every address from the date of the offence through the date of this petition]

[Participant completes: court case number, if available]

[Participant completes: whether any criminal investigation or charge is pending]

[Participant completes: whether any further crime occurred within the applicable waiting period]

[Participant completes: every past conviction and collateral action, with case numbers, dates, appeals and appellate decision dates]

[Participant completes: last four digits of the Social Security number only]

[Participant completes: driver's licence number]

[Participant completes: arrest dates, if applicable]

[Participant completes: date of conviction]

[Participant completes: whether the waiting period elapsed or the written prosecutor consent shortening it]

[Participant completes: any other petition filed under I.C. 35-38-9]

Venue: A circuit or superior court in the county of conviction. A person with convictions in more than one county files in each, and those filings count as one petition only if they fall inside a 365-day window. Case type XP under Administrative Rule 8(B)(3).

Filing: File the verified petition and proposed order in a circuit or superior court in the county of conviction, as case type XP.

Service and notice: In accordance with the Indiana Rules of Trial Procedure, I.C. 35-38-9-8(e). Service is made in accordance with the Indiana Rules of Trial Procedure under I.C. 35-38-9-8(e). The prosecuting attorney must respond no later than 30 days after receipt and waives objection by failing to respond, under I.C. 35-38-9-8(g). The prosecuting attorney must notify the victim of their rights under I.C. 35-38-9-8(f), and the victim may submit an oral or written statement under I.C. 35-38-9-9(d).

Written prosecutor consent is required to file this Section 5 petition. Attach the original consent before filing; silence is not consent.

Verification:

I verify the statements in this petition under the penalties for perjury.

[Participant completes: signature and date]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Proposed Order on Petition to Expunge a Serious Felony Conviction

Authority: I.C. 35-38-9-5; I.C. 35-38-9-8; I.C. 35-38-9-9; I.C. 35-38-9-7; P.L.77-2025

PROPOSED ORDER

The court considers the verified petition and the record filed with it.

Findings:

[Court or clerk completes: the statutory findings under I.C. 35-38-9-5 and I.C. 35-38-9-8]

[Court or clerk completes: whether the petition is granted or denied]

IT IS ORDERED:

[Court or clerk completes: the court's expungement and record-marking directives under I.C. 35-38-9-7]

[Court or clerk completes: order date]

[Court or clerk completes: judge signature]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Attachment: Written Prosecutor Consent

Authority: I.C. 35-38-9-5; I.C. 35-38-9-8; I.C. 35-38-9-9; I.C. 35-38-9-7; P.L.77-2025

ATTACHMENT 3**WRITTEN PROSECUTOR CONSENT**

Obtain the prosecuting attorney's written consent required by I.C. 35-38-9-5 and attach the signed original behind this page.

This page is a labelled handoff only. It is not prosecutor consent, does not supply a signature, and does not authorize filing by itself.

[Participant completes: the original written consent from the prosecutor]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Verified Request to Expunge a Collateral Action

Authority: I.C. 35-38-9-0.5; I.C. 35-38-9-9.5

VERIFIED REQUEST

Petitioner requests expungement of a collateral action related to an expunged matter under I.C. 35-38-9-9.5 and the definition in I.C. 35-38-9-0.5.

The request must identify:

Petitioner's name: Maria-Alejandra O'Shaughnessy-Whitfield

[Participant completes: the court and date of the original expungement order]

[Participant completes: the county where the collateral action occurred]

[Participant completes: the collateral action's cause number, if it has one]

[Participant completes: the kind of collateral action: seizure, civil forfeiture, specialized driving privileges petition, or administrative proceeding]

[Participant completes: the factual and legal relationship between the collateral action and the expunged matter]

[Participant completes: a properly certified copy of the original expungement order]

Venue: A circuit or superior court in the county where the collateral action occurred, filed under the collateral action's cause number where possible.

Filing: File under the collateral action's cause number where possible, in a circuit or superior court in the county where the collateral action occurred.

Service and notice: The court notifies the prosecuting attorney. Confirm local practice before assuming the participant need not serve. The court notifies the prosecuting attorney of that county and sets a hearing, or may grant without a hearing where the record conclusively establishes entitlement.

The participant signs this verified request.

[Participant completes: signature and date]

STOP: The court finds the collateral action does not relate to the expunged matter.

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Proposed Order on Collateral Action

Authority: I.C. 35-38-9-0.5; I.C. 35-38-9-9.5

PROPOSED ORDER

The court considers the verified request and the certified original expungement order.

Findings:

[Court or clerk completes: whether the collateral action is related to the expunged matter]

[Court or clerk completes: the original expungement section and order]

IT IS ORDERED:

[Court or clerk completes: whether the collateral action is expunged or marked expunged under the applicable section]

[Court or clerk completes: order date]

[Court or clerk completes: judge signature]

A court finding that the collateral action does not relate to the expunged matter is a stop condition for this route.

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Attachment: Certified Original Expungement Order

Authority: I.C. 35-38-9-0.5; I.C. 35-38-9-9.5

ATTACHMENT 3

CERTIFIED ORIGINAL EXPUNGEMENT ORDER

Obtain a certified copy from the clerk of the court that granted the original expungement and attach it behind this page.
This page is a document handoff. It is not a certified order and no original order is represented as held or generated here.

[Participant completes: the certified original expungement order]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Supplemental Petition After a Favourable Amendment

Authority: I.C. 35-38-9-9(l); I.C. 35-38-9-0.6(c)

SUPPLEMENTAL PETITION

Petitioner asks for additional relief after a favourable amendment under I.C. 35-38-9-9(l) and I.C. 35-38-9-0.6(c).

The petition must state:

Petitioner's name: Maria-Alejandra O'Shaughnessy-Whitfield

[Participant completes: the court and date of the original expungement order]

[Participant completes: the amendment relied on and its effective date]

[Participant completes: the greater relief sought]

[Participant completes: why the original expungement was granted before the amendment]

[Participant completes: why the petitioner is otherwise entitled to the amended relief]

[Participant completes: a properly certified copy of the original expungement order]

Venue: The court that granted the original expungement.

Filing: File in the court that granted the original expungement.

Service and notice: Follow the ordinary Trial Rules service on the prosecuting attorney. Confirm local practice. The review does not state a distinct notice rule for a supplemental petition. Follow the ordinary Trial Rules service on the prosecuting attorney.

The participant signs this petition.

[Participant completes: signature and date]

The review identifies no settled fee amount for this route. Confirm the current filing requirement with the clerk before filing; this packet does not invent a fee.

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Proposed Supplemental Order

Authority: I.C. 35-38-9-9(l); I.C. 35-38-9-0.6(c)

PROPOSED SUPPLEMENTAL ORDER

The court considers the supplemental petition, the amendment identified in it and the certified original expungement order.

Findings:

[Court or clerk completes: whether the original expungement preceded the favourable amendment]

[Court or clerk completes: whether the petitioner is otherwise entitled to the amended relief]

IT IS ORDERED:

[Court or clerk completes: relief consistent with the amendment]

[Court or clerk completes: order date]

[Court or clerk completes: judge signature]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Attachment: Certified Original Expungement Order

Authority: I.C. 35-38-9-9(l); I.C. 35-38-9-0.6(c)

ATTACHMENT 3

CERTIFIED ORIGINAL EXPUNGEMENT ORDER

Obtain a certified copy from the clerk of the court that granted the original expungement and attach it behind this page.
This page is a document handoff. It is not a certified order and no original order is represented as held or generated here.

[Participant completes: the certified original expungement order]

STATE OF INDIANA

St. Joseph COUNTY

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Court: [Participant supplies the circuit or superior court name]

Cause number: [Participant supplies the cause number, if available]

Indiana Serious-Felony Filing and Service Instructions

Authority: I.C. 35-38-9-5; I.C. 35-38-9-8; I.C. 35-38-9-9; I.C. 35-38-9-7; P.L.77-2025

FILING AND SERVICE INSTRUCTIONS

The serious-felony petition must not be filed without the written prosecutor consent required by I.C. 35-38-9-5.

File the verified petition and proposed order in a circuit or superior court in the county of conviction as case type XP.

Follow the Trial Rules service requirements.

Use the official statewide supporting forms included in this packet when the route and filer require them. Complete every participant blank, sign the petition, and leave judicial and clerk fields blank.

SELF-HELP STOP CONDITIONS:

Petition to Expunge a Serious Felony Conviction, I.C. 35-38-9-5:

- The prosecutor objects or files a notice in opposition.
- A victim submits a statement in opposition.
- The court sets a hearing.
- The person has convictions in more than one county and the 365-day window is already partly consumed.
- A conviction is not yet eligible and the person wants to file now, which is the Chastain trap.
- The person has already filed a Sections 2 through 5 petition.
- Classification between Sections 2, 3, 4 and 5 is unclear, or turns on whether an offence caused serious bodily injury.
- The person is a sex or violent offender or subject to registration.
- Fines, fees, costs or restitution are unpaid or disputed.
- Charges are pending anywhere, or the person is in a pretrial diversion programme.
- The record involves a commercial driver's licence and 49 C.F.R. 384.226.
- Immigration, firearm, licensing or CDL consequences are in play.
- The person wants to attack the underlying conviction rather than expunge it.

Request to Expunge a Collateral Action, I.C. 35-38-9-9.5:

- The prosecutor objects or files a notice in opposition.
- A victim submits a statement in opposition.
- The court sets a hearing.
- The person has convictions in more than one county and the 365-day window is already partly consumed.
- A conviction is not yet eligible and the person wants to file now, which is the Chastain trap.
- The person has already filed a Sections 2 through 5 petition.
- Classification between Sections 2, 3, 4 and 5 is unclear, or turns on whether an offence caused serious bodily injury.
- The person is a sex or violent offender or subject to registration.
- Fines, fees, costs or restitution are unpaid or disputed.
- Charges are pending anywhere, or the person is in a pretrial diversion programme.
- The record involves a commercial driver's licence and 49 C.F.R. 384.226.
- Immigration, firearm, licensing or CDL consequences are in play.
- The person wants to attack the underlying conviction rather than expunge it.
- The court finds the collateral action does not relate to the expunged matter.

Supplemental Petition After a Favourable Amendment, I.C. 35-38-9-9(l):

- The prosecutor objects or files a notice in opposition.
- A victim submits a statement in opposition.
- The court sets a hearing.
- The person has convictions in more than one county and the 365-day window is already partly consumed.
- A conviction is not yet eligible and the person wants to file now, which is the Chastain trap.

- The person has already filed a Sections 2 through 5 petition.
- Classification between Sections 2, 3, 4 and 5 is unclear, or turns on whether an offence caused serious bodily injury.
- The person is a sex or violent offender or subject to registration.
- Fines, fees, costs or restitution are unpaid or disputed.
- Charges are pending anywhere, or the person is in a pretrial diversion programme.
- The record involves a commercial driver's licence and 49 C.F.R. 384.226.
- Immigration, firearm, licensing or CDL consequences are in play.
- The person wants to attack the underlying conviction rather than expunge it.